

GZ: 2022-0.140.408 dated March 24, 2022 (Case Number: DSB-D124.5125)

[Note by the editor: Names and companies, legal forms and product designations, addresses (including URLs, IP and email addresses), file numbers (and the like), etc., as well as their initials and abbreviations may have been abbreviated and/or altered for pseudonymization reasons. Obvious spelling, grammar, and punctuation errors have been corrected.]

DECISION

RULING

The Data Protection Authority decides on the data protection complaint of Monika A***, formerly S***, (complainant), represented by attorney Mag. Wolfgang A***, dated October 11, 2021, against Erwin N*** (respondent), represented by attorney Mag. Sofia L***, regarding the violation of the right to confidentiality as follows:

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The complaint is upheld, and it is determined that the respondent has violated the complainant's right to confidentiality by transmitting the judgment of the Regional Court for Criminal Matters *** in case * Hv **/20b dated August 5, 2020, as well as the appeal filed against it on September 22, 2020, to a third party via WhatsApp on October 4, 2020.

Legal basis: Art. 4, Art. 51 para. 1, Art. 57 para. 1 lit. f, and Art. 77 para. 1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter: GDPR), OJ No. L 119 of May 4, 2016, p. 1; §§ 1, 18 para. 1, and 24 para. 1 and para. 5 of the Data Protection Act (DSG), Federal Law Gazette I No. 165/1999 as amended.

REASONING

A. Submissions of the Parties and Procedural History

1. In an introductory submission dated October 11, 2021, the complainant, represented by counsel, stated that she became aware on September 30, 2021, that the respondent had transmitted the judgment of the Regional Court for Criminal Matters *** in case * Hv **/20b dated August 5, 2020, as well as the appeal filed against it on September 22, 2020, in full text and not anonymized to Barbara Z*** via WhatsApp on October 4, 2020. The judgment had been presented by Barbara Z*** in a court proceeding.

With the transmitted judgment, the complainant had been convicted of serious bodily harm and attempted trespassing. The processing of personal data regarding criminal convictions and offenses is only permissible under specific conditions according to Art. 10 GDPR; these conditions are not present in this case. The transmitted appeal against this judgment also contains detailed information regarding the criminal conviction and the alleged offenses. Through the transmissions, the complainant's right to confidentiality has been violated.

As attachments, the complainant submitted, among other things, a WhatsApp screenshot, the judgment of the Regional Court for Criminal Matters *** in case * Hv **/20b, and the related appeal.

2.

In a statement dated November 2, 2021, the respondent, represented by counsel, stated that the GDPR does not prohibit the transmission of PDF files or a judgment as a PDF via WhatsApp between private individuals. Anyone using WhatsApp on their private phone is exempt from data protection regulations, as data processing for purely personal and family purposes is not covered.

Moreover, no processing concerning the complainant regarding criminal convictions and offenses had occurred, and it was not possible for the recipient to open the transmitted PDF files. Therefore, the judgment had to be transmitted again subsequently. The WhatsApp message only displayed file numbers and the letterhead of the court, with no personal data of the complainant visible.

The complainant had filed a private prosecution against Ms. Z*** under § 111 of the Criminal Code; this was due to a letter sent by Ms. Z*** to the District Court *** in the enforcement proceedings on June 15, 2021. In it, she stated that the complainant had been sentenced to a suspended prison sentence for multiple bodily harm on June 2. Ms. Z*** needed the judgment to prove the actual conviction of the complainant in the private prosecution proceedings. Therefore, she had asked the respondent, as the victim of the complainant, in the proceedings of the Regional Court for Criminal Matters in case * Hv **/20b, to transmit the judgment to her.

When examining whether the transmission of a PDF file via WhatsApp is secure, it can be concluded that by transmitting a PDF file and not photos of the judgment pages, it can be assumed that the complainant was not compromised in this specific case. Transmissions via messenger services are considered secure due to encryption.

Contrary to the complainant's assertions, she was not violated in her right to confidentiality by the transmission of the PDF file.

as follows:

As attachments, the respondent submitted the private prosecution dated June 21, 2021, from the complainant, the letter from Ms. Z*** to the district court, and the counter-statement to the private prosecution.

3. In a statement dated December 13, 2021, the complainant, represented by counsel, partially reiterated her submissions and additionally stated that according to Art. 2 para. 2 lit. c GDPR, the processing of personal data by natural persons for the exercise of exclusively personal or family activities does not fall under the regulation. The respondent overlooks that the complaint is based on the constitutional provision of § 1 DSG and not on the GDPR. The DSG is not a direct implementation of the GDPR. Rather, it establishes the necessary implementing provisions and utilizes some of the opening clauses of the GDPR. The scope of protection of the fundamental right to data protection remains unrestricted. Thus, the limitation of Art. 2 para. 2 lit. c GDPR to merely economic activities of natural persons is not applicable to § 1 para. 1 DSG.

The respondent claims that Barbara Z*** was unable to open the PDF files sent to her. For this reason, there would be no data processing. The transmission via WhatsApp is acknowledged by the respondent. The assertion that the PDF could not be opened is a mere protective claim; no evidence is provided for this. WhatsApp supports the transmission of PDF files. If Barbara Z*** can receive WhatsApp messages, she can also open PDF files. Every smartphone has the necessary technical applications installed or can easily download them for free from the internet if necessary.

To substantiate the substantively incorrect protective claim, the assertion is made that the complainant should have resent the documents to Barbara Z***. However, it is not specified when and how this transmission was supposed to have taken place. The right to confidentiality does not only extend to personal data appearing in a file and is applicable regardless of the technical-organizational conditions of data processing. A transmission of the documents by post printed on paper or a personal handover would equally have violated the complainant's right to confidentiality.

The transmission was not necessary to safeguard the interests of the accused in the private prosecution proceedings.

4.

In a letter dated January 7, 2022, the Data Protection Authority again requested the respondent to provide a statement. In particular, it was requested to specifically outline the purpose of the data transmission on October 4, 2020. In this context, it was pointed out that the statements regarding the need to prove a conviction in the private prosecution proceedings could not be followed unambiguously, especially since the transmission by the complainant apparently took place in 2020; however, the private prosecution was evidently only filed in 2021.

5. In a statement dated January 31, 2022, the respondent, represented by counsel, partially reiterated his submissions and additionally stated that the DSG also does not prohibit the transmission of PDF files or a judgment via WhatsApp or email. The PDF files were sent because Ms. Z*** had been sued by the complainant in 2019 before the district court regarding * C **/19x for the return of her cat. Since the complainant had threatened to take the cat herself and Ms. Z*** had to fear that the complainant could gain access to her apartment, as she had attempted with the respondent and had done so with another victim in the criminal proceedings for which she had been convicted, Ms. Z*** requested that the judgment be sent to her to prove this to the judge.

Since Ms. Z*** was unable to open the judgment and only needed it in the private prosecution proceedings in 2021, she asked the respondent in 2021 to resend the judgment. The respondent therefore sent her the judgment via email on July 28, 2021. It follows undoubtedly that she could not open the files in the WhatsApp message, because otherwise, he would not have had to send it to her

again. This indicates that the WhatsApp message could not be opened.

The respondent would never have thought that it could be unlawful to transmit the judgment. From his perspective, it was a public hearing. Anyone could have listened to the announcement of the judgment. The proceedings before the regional court for criminal matters *** were public proceedings. All circumstances mentioned in the judgment, including the personal data of the complainant, were discussed in the public hearing. Furthermore, at the beginning of the main hearing, personal data of the complainant, which far exceeded the data contained in the judgment, were discussed. The judgment was not transmitted in any way to discredit the complainant, but only so that Barbara Z*** could defend herself against the complainant.

The transmission did not violate the legitimate confidentiality interests of the complainant. The justification for the non-violation of the legitimate confidentiality interests in the transmission of criminal law-related data is regulated in § 8 para. 4 DSG 2000. The use of data concerning judicially or administratively punishable acts or omissions violates, among other things...

then does not violate the legitimate confidentiality interests of the affected party when the legitimate interests outweigh the legitimate confidentiality interests. Moreover, there is no legitimate interest in the confidentiality of personal data when the data is generally available. This is certainly the case for data that appears in a public criminal trial. A limitation of the right to confidentiality is permissible according to § 1 para. 2 DSG if the use of personal data is justified by the overriding legitimate interests of a third party. § 4 para. 3 no. 2 DSG provides that the processing of personal data concerning criminal offenses is permissible if this is necessary to safeguard the legitimate interests of a third party in accordance with Art. 6 para. 1 lit. f GDPR and the manner in which the data processing is carried out ensures the protection of the interests of the affected person according to the GDPR and this federal law. This is precisely the case in the present instance. The legitimate interest of Ms. Z*** under the DSG in receiving the judgment and the transmission of the judgment arises from the threat made by the complainant that she would retrieve the cat herself, in connection with the fact that the complainant had already been convicted of two such offenses by the Regional Court for Criminal Matters ***.

The private prosecution according to § 111 StGB results in Ms. Z*** being required to provide evidence for her defense. She is therefore instructed to present the criminal judgment for her appropriate defense as a defendant in the private prosecution proceedings and has a legitimate interest.

6. In a statement dated February 22, 2022, the complainant, represented by counsel, partially repeated her assertions and additionally stated that the transmission in question had occurred on October 4, 2020, and thus more than eight months prior to the initiation of the private prosecution proceedings. Therefore, the respondent was compelled to come up with a new story. The proceedings regarding * C **/19x before the District Court *** had already been concluded at the time of the transmission. The first-instance judgment was delivered on February 24, 2020. The appeal against it was filed on May 25, 2020. She would no longer have been able to introduce the transmitted documents into the disclosure process. The Regional Court for Civil Matters *** confirmed the first-instance judgment on October 9, 2021. The second attempt at explanation also contradicts the chronology of events. The criminal proceedings regarding * Hv **/20b have no substantive or legal connection to the disclosure proceedings. Barbara Z*** was not involved in this proceeding.

Regarding the assertion that the PDF could not be opened, it should be noted that the constitutional provision of § 1 DSG includes a central protection against the transmission and disclosure of data. The transmission of data is a time-limited event that is completed upon its fulfillment. The actual perception of the disclosed data is irrelevant. The complainant's rights were already violated by the transmission of the PDF files via WhatsApp. Whether Barbara Z*** opened the files or could have opened them is of no relevance. The documents were transmitted with the aim of making them available to Barbara Z***. He not only accepted the violation but rather intended it. The transmission of the files by the respondent constitutes an administrative offense according to § 62 para. 1 no. 2 DSG and is already punishable as an attempt according to § 62 para. 2 DSG. This indicates that in any case, a data protection violation occurred in the present complaint. The legal violation occurred through the

transmission.

According to his statement, the respondent transmitted the judgment at the request of Barbara Z*** because she was very afraid of the complainant acting unilaterally and urgently needed the judgment for that reason. However, when she could not read the judgment, she did nothing. She was only contacted again in July 2021. This story is self-contradictory and inconsistent with general life experience. If she could not open the documents, she would have urgently requested them beforehand, and the respondent would have already resent the document to her via email at the beginning of October 2020.

Moreover, the claims of the respondent contradict the statements of Barbara Z***. The legal representation of Barbara Z***, attorney Mag. Petra F***, states in the counter-statement to the private prosecution dated October 12, 2021, that the judgment in question against the accused here was transmitted by one of the witnesses/victims in the proceedings of the Regional Court for Criminal Matters *** regarding * Hv **/20b on October 4, 2020, via WhatsApp. A screenshot of the WhatsApp message was submitted along with the written statement. This refutes the protective claim.

The fundamental right to a public trial and to the publication of judgments is not intended to expose offenders to public shame through the dissemination of non-anonymized written copies of judgments. The respondent misunderstands the purpose of these norms of Art. 90 para. 1 B-VG, Art. 6 para. 1 sentence 2 ECHR, and Art. 47 para. 2 Charter of Fundamental Rights. Such an interpretation would render Art. 10 GDPR as well as § 15 para. 4 OGHG obsolete.

According to Art. 4 no. 1 GDPR, personal data is any information relating to an identified or identifiable natural person. The judgment of the District Court for Criminal Matters *** in * Hv **/20b dated August 5, 2020 against the complainant

undoubtedly
represents
personal
data
of
the

complainant. Disclosure through transmission constitutes processing in the sense of Art. 4 No. 2 GDPR, which opens the material scope for a data protection complaint. Furthermore, there are personal data concerning criminal convictions and offenses in the sense of Art. 10 GDPR, specifically information regarding a first-instance criminal conviction. The fact of publicity does not exculpate the respondent.

There are no legitimate interests at stake, especially since the private prosecution procedure relates to the statement of Barbara Z*** regarding the outcome of the appeal hearing on June 2, 2021 at the Higher Regional Court ***. This cannot be proven with the first-instance judgment.

The complainant attempts to unlawfully influence the court's assessment of evidence in the private prosecution procedure. The data protection regulations are intended to prevent exactly this. It is discriminatory to accuse someone of a criminal conviction and treat them differently because of it. Not without reason does Art. 10 GDPR establish particularly strict rules for the processing of personal data concerning criminal convictions and offenses. As attachments, the complainant submitted two court decisions.

B. Subject of the Complaint

Based on the complainant's submissions, the subject of the complaint is the question of whether the respondent violated the complainant's right to secrecy by transmitting the judgment of the District Court for Criminal Matters *** in * Hv **/20b dated August 5, 2020, as well as the appeal filed

against it on September 22, 2020, to a third party via WhatsApp on October 4, 2020.

Not

the subject of the complaint

is the question of whether the respondent violated the complainant's right to secrecy by transmitting a judgment via email on July 28, 2021.

C. Findings of Facts

1. The respondent transmitted via WhatsApp on October 4, 2020, to Barbara Z*** the judgment concerning the complainant from the District Court for Criminal Matters *** in * Hv **/20b dated August 5, 2020, as well as the related appeal of the complainant. The screenshot regarding the transmission is as follows:

[Note from the editor: the graphic file (screenshot from WhatsApp) has been removed as it cannot be displayed in the RIS.]

Assessment of Evidence: The findings are primarily based on the relevant submissions of the complainant and particularly on the screenshot provided by the complainant. The screenshot shows that the judgment in * Hv **/20b was transmitted as a 17-page PDF; the appeal in * Hv **/20b is a 26-page PDF. It can be concluded that the documents were each transmitted in full via WhatsApp by the respondent.

2. The complainant sued Barbara Z*** before the District Court *** in * C **/19x for the return of a cat. The judgment regarding this matter was served to the parties on February 24, 2020. Barbara Z*** appealed this decision. The complainant submitted a response to the appeal on June 3, 2020. The District Court for Civil Matters *** decided on the appeal in * R **/20t on October 9, 2020. On June 21, 2021, the complainant filed a private prosecution against Barbara Z*** before the District Court ***.

Assessment of Evidence: The findings regarding the pending proceedings are based on the corresponding submissions of the parties. The statements regarding the timeline of the return proceedings concerning the cat are based on the submissions of the complainant. The findings regarding the private prosecution are based on the attachments submitted by the respondent.

D. From a legal perspective, it follows:

D.1. On the Right to Secrecy

According to § 1 para. 1 DSG, everyone has the right to secrecy of their personal data, provided there is a legitimate interest in it. The existence of such an interest is excluded if data are not accessible to a claim for secrecy due to their general availability or because they cannot be traced back to the data subject.

The GDPR and, in particular, the principles enshrined therein must be considered in the interpretation of the right to secrecy (cf. DSB October 31, 2018, GZ DSB-D123.076/0003-DSB/2018 with references).

D.2. On the (Non-)Applicability of the GDPR and the so-called "Household Exception"

According to Art. 2 para. 2 lit. c, the GDPR does not apply to the processing of personal data by natural persons for the exercise of exclusively personal or family activities (commonly referred to as the "household exception").

According to prevailing opinion, this exception – as correctly stated by the complainant – is to be interpreted restrictively (cf. in particular ECJ

November 6, 2003, C-101/01, regarding the largely identical provision of Art. 3 para. 2).

second bullet point of Directive 95/46/EC). According to Recital 18 of the GDPR, this is intended to manifest a distinction from professional or economic activities. The central criterion for the applicability

of the "household exception" – and thus the non-applicability of the GDPR – is the attribution of data processing to the private sphere (cf. Heißl in Knyrim [ed.], *DatKomm Art. 2 GDPR Rz 70*, with references).

Similarly, the CJEU in its judgment of July 10, 2018, C-25/17, regarding the "household exception" under Directive 95/46/EC – referencing previous case law – stated that the terms "personal" and "family" refer to the activities of the person processing personal data, and not to the person whose data is being processed. Only activities that belong to the private or family life of individuals are covered. In this respect, an activity cannot be considered exclusively personal or family in the sense of this provision if it involves making personal data accessible to an unlimited number of people, or if it extends even partially into the public sphere and thus targets an area outside the private sphere of the person processing the data (Rz 41, 42). In the aforementioned judgment, the activities of a religious community, which consisted of conducting door-to-door preaching, were not considered to fall under the household exception.

The respondent states in its submissions to the data protection authority that the transmission of data via WhatsApp was for the purpose of potential use by Barbara Z*** in legal proceedings. Barbara Z*** needed the relevant documents both for submission in the civil proceedings concerning the return of the cat and in the private prosecution proceedings under § 111 StGB against her.

The central criterion for the applicability of the "household exception," namely the exclusive attribution to the private sphere, is therefore not present. Even a mixed use ("dual use"), meaning processing for both private and professional or economic purposes, would lead to the applicability of the GDPR in light of the wording of Art. 2 para. 2 lit. c. GDPR ("exclusively") (cf. again Heißl in Knyrim [ed.], *DatKomm Art. 2 GDPR Rz 75*, with references). Furthermore, there are no familial ties between the respondent and Barbara Z***.

Following these statements, the exception provision is in any case not applicable in the present case, and the applicability of the GDPR is therefore given in this case.

D.3. Regarding the material scope of application

The judgment of the Regional Court for Criminal Matters *** in * Hv **/20b of August 5, 2020, against the complainant, as well as the related appeal of September 22, 2020, represent personal data of the complainant. Specifically, these are personal data concerning criminal convictions and offenses within the meaning of Art. 10 GDPR. The transmission via WhatsApp constitutes processing within the meaning of Art. 4 No. 2 GDPR, which opens the material scope of application.

D.4. Restrictions on the right to confidentiality

Restrictions on the claim to confidentiality are permissible according to § 1 para. 2 DSG when personal data is used in the vital interest of the data subject, the data subject has given consent (or in the terminology of the GDPR: permission), when there is a qualified legal basis for the use, or when the use is justified by overriding legitimate interests of a third party.

According to Art. 10 GDPR, the processing of personal data concerning criminal convictions and offenses or related security measures may only be carried out under official supervision or when permitted by Union law or the law of the Member States, which provides appropriate safeguards for the rights and freedoms of the affected persons, based on Art. 6 para. 1 leg.cit.

The Austrian legislator has made use of this deviation authority or opening clause and regulated the processing of criminally relevant data by private parties in § 4 para. 3 DSG (cf. Kastelitz/Hötzendorfer/Tschohl in Knyrim, *DatKomm Art 10 GDPR, Rz 24*).

§ 4 para. 3 No. 2 DSG provides that the processing of personal data concerning judicially or administratively punishable acts or omissions, particularly concerning the suspicion of committing offenses, as well as concerning criminal convictions or preventive measures, is permissible in compliance with the provisions of the GDPR, if otherwise the permissibility of processing this data arises from legal due diligence obligations or the processing is necessary to safeguard the legitimate

interests of the controller or a third party in accordance with Art. 6 para. 1 lit. f GDPR, and the manner in which the data processing is carried out ensures the protection of the interests of the affected person according to the GDPR and this federal law.

Insofar as the respondent sees the legality in § 8 para. 4 DSG 2000, it is pointed out that this provision has expired as of May 24, 2018. The examination of the facts will be carried out in accordance with the applicable provisions mentioned above.

D.5. In the matter

A vital interest of the complainant or her consent is evidently not present in this case. It must therefore be examined whether legitimate interests exist in the sense of the above statements.

The respondent repeatedly states that the transmission in question occurred because Ms. Barbara Z*** needed the data to prove the actual conviction of the complainant in the private prosecution proceedings. It should be noted that the transmission in question took place on October 4, 2020, and the mentioned private prosecution, as established, was only filed on June 21, 2021. A justification in connection with the private prosecution cannot therefore be seen, as it was only initiated nearly a year after the transmission in question. Thus, the statements of both the respondent and the complainant regarding the private prosecution are irrelevant for this reason alone.

Furthermore, the respondent states in his supplementary statement that Ms. Barbara Z*** needed the data in question for submission in the civil release proceedings concerning the cat, which was initiated by the complainant against Barbara Z***. However, as the respondent further states, the submission of documents in this context has not occurred. For this reason alone, it is not evident that legitimate interests on the part of Ms. Barbara Z*** exist in this context. Moreover, the complainant's statements should be followed in that the temporal component does not appear entirely accurate. As can be seen from the factual findings, the first-instance proceedings in this regard had already been concluded at the time of the transmission in question.

In summary, there is no permissible restriction of the right to confidentiality in this case.

Whether the unauthorized recipient actually viewed the personal data of the complainant can remain undecided, as the mere fact of the unlawful transmission into the electronic mailbox of a third party constitutes a violation of the fundamental right to confidentiality, which equally applies to a transmission via WhatsApp (cf. the ruling of the BVwG of September 3, 2019, GZ W214 2219944-1/9E, according to which neither § 1 para. 2 DSG nor Art. 4 no. 2 in conjunction with Art. 6 GDPR refers to a certain "minimum processing").

If the respondent argues that there is no legitimate interest in confidentiality regarding the data due to the public court hearing and that these are not subject to a confidentiality claim, it must be countered that the general assumption of the non-existence of a violation of legitimate confidentiality interests for publicly published data is not compatible with European legal requirements (cf. the judgment of the CJEU of December 16, 2008, C-73/07 Satakunnan Markkinapörssi and Satamedia, as well as the ruling of the BVwG of July 29, 2020, GZ W211 2221963-1, and of February 25, 2021, GZ W274 2236016-1, as well as the decision of the Data Protection Authority of April 23, 2019, GZ D123.626/0006-DSB/2018).

In this respect, the related argument also appears irrelevant.

As a result, there is a violation of the complainant's right to confidentiality, and a decision was to be made accordingly.